

of the land which may be acquired by the Board of Agriculture and Fisheries for the purposes of that section, shall have effect as if forty-five thousand acres were therein substituted for four thousand five hundred acres, twenty thousand acres for two thousand acres, and sixty thousand acres for six thousand acres, provided that for the purposes of the acquisition, equipment, and settlement of the area hereby authorised to be acquired by the Board of Agriculture and Fisheries, the Board may, as respects any county, with the consent of the council of that county, employ that council as their agents, and vest in them all or any of the powers hereby or by the principal Act conferred upon them, in addition to those vested in such council by virtue of the Small Holdings and Allotments Act, 1908, and paragraph (c) of section eleven of the principal Act, which limits the area of the land which may be acquired by the Board of Agriculture for Scotland for the purposes of the said section one, shall have effect as if twenty thousand acres were therein substituted for two thousand acres :

purposes of
s. 1 of 6 & 7
Geo. 5. c. 38.

8 Edw. 7. c. 36.

Provided that where land which is to be acquired for the purposes of the said section one could not, if this Act had not been passed, have been acquired for that purpose without making the total area of the land for the time being so acquired exceed the amount authorised to be so acquired, the land shall not be acquired otherwise than by taking the same on lease, or by purchasing it in consideration of the grant of a rentcharge or other annual payment, or by taking the same in feu :

Provided also that no portion of the additional land authorised by this Act to be acquired by the Board of Agriculture and Fisheries shall be so acquired except after consultation with the chairman of the council of the county in which the land proposed to be acquired is situate, or with a committee of that council.

2. This Act may be cited as the Small Holding Colonies (Amendment) Act, 1918, and the principal Act and this Act may be cited together as the Small Holding Colonies Acts, 1916 and 1918.

Short title and
citation.

CHAPTER 27.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [8th August 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Grants for
public works.

1.—(1) For the purpose of local loans, there may be issued by the National Debt Commissioners the following sums, namely:—

- (a) For the purpose of loans by the Public Works Loan Commissioners, any sum or sums not exceeding in the whole the sum of one million pounds;
- (b) For the purpose of loans by the Commissioners of Public Works in Ireland, any sum or sums not exceeding in the whole the sum of two hundred and fifty thousand pounds.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation, and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

50 & 51 Vict.
c. 16.

Certain debts
not to be
reckoned as
assets of local
loans fund.

2. Whereas it is expedient that the principal of the several local loans specified in the tables contained in Part I., Part II., and Part III. respectively of the Schedule to this Act should, to the extent specified in the last column of those Tables, not be reckoned as assets of the local loans fund established under the National Debt and Local Loans Act, 1887, and that the several sums specified in the second column of the Table contained in Part IV. of the said Schedule should not be reckoned as assets of the said fund:

Now, therefore, the principal of the said loans to the extent aforesaid and the said sums shall be written off from the assets of the local loans fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto.

Remission of
arrear of
principal and
interest in
respect of
Eyemouth
Harbour loan.
1 Edw. 7. c. 35.

3. Whereas in pursuance of an agreement made in the year eighteen hundred and ninety-two the sum of ten thousand pounds was advanced by the Public Works Loan Commissioners to the Eyemouth Harbour Trustees on the security of the harbour revenues with the collateral security of the Fishery Board for Scotland:

And whereas by an arrangement confirmed by section three of the Public Works Loans Act, 1901, the liability of the Eyemouth Harbour Trustees in respect of the said loan was extinguished without prejudice to the liability of the Fishery Board for Scotland to repay the said loan, and, in consequence thereof, the said collateral security is the sole security for the repayment of the said loan:

And whereas the terms of the said collateral security are embodied in a memorandum of agreement between the Secretary for Scotland and the Public Works Loan Commissioners, dated the eleventh day of March eighteen hundred and ninety-two, whereby a portion of the surplus herring brand fees, as defined in clause three of the said memorandum, was pledged in security for the repayment of the said loan with interest by the instalments and at the times mentioned in the security given by the Eyemouth Harbour Trustees for the said loan, and it was

provided that the said portion of the surplus herring brand fees of any one year should only be applicable to the repayment of the one-fiftieth part of principal and interest on outstanding principal falling due under the security for the said loan in the same year, and should not be applicable to the repayment of arrears of principal :

And whereas the said portion of the surplus herring brand fees, so pledged as aforesaid, was in the year ending the thirty-first day of March nineteen hundred and eighteen insufficient to discharge in full the instalment of principal with interest which fell due under the security for the said loan in that year, and the principal sum of two hundred pounds, with interest amounting to one hundred and sixty-two pounds fourteen shillings and sixpence, now remains unpaid, and under the terms of the said memorandum of agreement is irrecoverable :

Now, therefore, the said principal sum of two hundred pounds shall be extinguished, and the said arrears of interest amounting to one hundred and sixty-two pounds fourteen shillings and sixpence shall be remitted.

4. For the purpose of removing doubts it is hereby declared that the power of the Treasury under section one of the Public Works Loans Act, 1897, as amended by section four of the Public Works Loans Act, 1917, to fix rates of interest on loans made out of the local loans fund otherwise than on the security of local rates includes (subject always to the provisions of the said sections) a power to fix rates of interest differing from the rates fixed for loans made out of that fund on the security of local rates, and a power to fix different rates of interest in respect of different loans, and that in fixing the rate of interest the Treasury may take into account the nature and value of the security for the loan.

Explanation of effect of s. 4, of 7 & 8 Geo. 5, c. 32. 60 & 61 Vict. c. 51.

5. This Act may be cited as the Public Works Loans Act, 1918. Short title.

SCHEDULE.

PART I.

Section 2.

LOANS BY THE PUBLIC WORKS LOAN COMMISSIONERS.

Loan under the Harbours and Passing Tolls Act, 1861
(24 & 25 Vict. c. 47).

Name of Borrower.		Amount of Loan.	Amount to be written off.		
		£	s.	d.	£ s. d.
Eyemouth Harbour Trustees	- -	10,000	0	0	200 0 0
Port Ness Harbour Trustees.	- -	2,000	0	0	1,978 14 0

PART II.

LOANS BY THE IRISH LAND COMMISSION.

Loans under the Purchase of Land (Ireland) Act, 1885
(48 & 49 Vict. c. 73).

Name of Borrower.	Amount of Loan.	Amount to be written off.
	£ s. d.	£ s. d.
Daniel Sullivan - - - -	300 0 0	222 2 11
James Connor - - - -	325 0 0	244 15 3
Mary Connor - - - -	325 0 0	244 15 3
James Piggott - - - -	400 0 0	301 2 9
Jno. Buckley - - - -	450 0 0	337 13 8
Patrick Reilly - - - -	325 0 0	244 15 3
Timothy Cronin - - - -	450 0 0	331 5 11
Jerh. Murphy - - - -	310 0 0	232 5 0
Ellen Cronin - - - -	400 0 0	294 1 4
Rev. Patk. O'Connor, P.P. - -	250 0 0	189 5 4

PART III.

LOANS BY THE COMMISSIONERS OF PUBLIC WORKS IN IRELAND.

Loans under the Land Law (Ireland) Act, 1881
(44 & 45 Vict. c. 49. s. 31).

Name of Borrower.	Amount of Loan.	Amount to be written off.
	£ s. d.	£ s. d.
Morty Buckley - - - -	100 0 0	53 5 9
Michael Kearney - - - -	65 0 0	60 0 0
Mary Loughlin - - - -	44 0 0	2 8 6
Edward Killian - - - -	80 0 0	58 12 3

PART IV.

SUMS DUE TO THE COMMISSIONERS OF PUBLIC WORKS
IN IRELAND.

Preliminary Expenses under the Landed Property Improvement
(Ireland) Act, 1847
(10 & 11 Vict. c. 32).

Name of Debtor.	Amount to be written off.
	£ s. d.
Edmund Ryan - - - -	1 18 1
David Carroll - - - -	1 11 8
Mary Garty - - - -	3 0 6
Laurence Ryan - - - -	2 14 3
Patrick Marron - - - -	3 2 7
Bernard McNamara - - - -	3 7 7